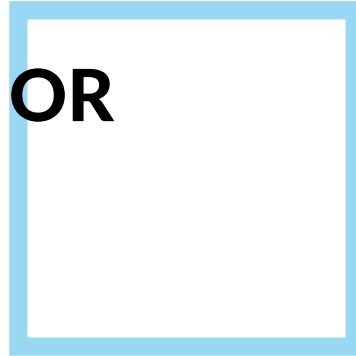


([https://www.google.co.uk](https://www.google.co.uk/search?q=richmond+chambers+in)
[q=richmond+chambers+in](https://www.google.co.uk/search?q=richmond+chambers+in))

CHILD OF A PARTNER OR PARENT VISA



LATEST NEWS: UK Asylum Reforms 2025: Restoring Order and Control? (<https://immigrationbarrister.co.uk/uk-asylum-reforms-2025-restoring-order-and-control/>)

LOCATION: HOME ([HTTPS://IMMIGRATIONBARRISTER.CO.UK/](https://immigrationbarrister.co.uk/)) » ...

CHILD OF A PARTNER OR PARENT VISA

The Child of a Partner or Parent Visa is for a child who wishes to enter or remain in the UK in circumstances where a parent has already been granted, or is at the same time being granted, a Partner or Parent Visa under Appendix FM of the Immigration Rules.

If the parent of the child does not hold, and is not being granted, leave as a **Partner** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/>) or **Parent** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/parent-of-a-child-visa/>) under Appendix FM of the Immigration Rules, but holds some other form of leave, then the child should apply, as appropriate, either under the **family life provisions of Part 8 of the Immigration Rules** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/child-visa/>) or as a **dependent child of a points-based system migrant** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/family-member-pbs-migrant-visa/>) instead.

If the child is British, has indefinite leave to remain or is otherwise settled in the UK then they do not need to apply for a visa in order to enter the UK.

Requirements for a Child of a Partner or Parent Visa

In order for your child to qualify for a Child of a Partner or Parent Visa to enter the UK, you will need to satisfy UK Visas & Immigration that:

- Your child is outside the UK;
- Your child is under the age of 18 at the date of application;
- Your child has not formed an independent family unit;
- Your child is not leading an independent life;

- One of the child's parents is in the UK with a Partner or Parent Visa under Appendix FM of the Immigration Rules or is being granted, or has already been granted, a Partner or Parent Visa under Appendix FM of the Immigration Rules (the 'child's parent'); or
- Either:
 - The child's parent's partner under Appendix FM is also a parent of the child; or
 - The child's parent has had and continues to have sole responsibility for the child's upbringing; or
 - There are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care;
- Your child satisfies a financial requirement;
- Your child satisfies an accommodation requirement.

The exact requirements your child will need to satisfy may vary depending on your child's personal circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Child of a Partner or Parent Visa application with one of our immigration barristers, contact our UK Child Visa lawyers on 0203 617 9173 or complete our enquiry form below.

Child of a Partner or Parent Visa Immigration Status Requirement

In order for your child to qualify for a Child of a Partner or Parent Visa, one of the child's parents must either be in the UK with a **Partner** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/>) or **Parent** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/parent-of-a-child-visa/>) Visa granted under Appendix FM of the Immigration Rules or be overseas and be being granted, or have already been granted, a Partner or Partner Visa under Appendix FM of the Immigration Rules.

Child of a Partner or Parent Visa Relationship Requirement

The relationship requirement can be satisfied in one of three ways, either:

- The partner of the child's parent who already has, or is being granted, a Partner or Parent Visa, is also a parent of the child who is applying for a Child of a Partner or Parent Visa; or
- The child's parent who already has, or is being granted, a Partner or Parent Visa has had and continues to have sole responsibility for the child's upbringing; or
- There are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care.

immigration barristers

([https://www.google.co.uk](https://www.google.co.uk/search?q=responsibility+and+the+governance+chambers+in)
search?q=responsibility+and+the
governance+chambers+in

3/13

Child Is Not Leading an Independent Life

immigration barristers

(<https://www.google.co.uk>

Similarly, a child who is living an independent life will not qualify for a Child of a Partner or Parent Visa. This means that your child must not have formed, through choice, a separate social unit from his/her parent(s). In practice, this means that your child will normally be living with their parent(s) (except where they are in full-time education at a boarding school, college or university), not employed full-time and be wholly or mainly dependent upon their parent(s) for financial and emotional support.

Child of a Partner or Parent Visa Financial Requirement

The financial requirement for a Child of a Partner or Parent Visa varies depending on whether the child is applying as a Child of a Partner or as a Child of a Parent.

Financial Requirement as a Child of a Parent

Where the parent of the child has been granted a Parent of a Child Visa, or is applying for or has applied for, a Parent of a Child Visa, the child will need to satisfy the Home Office that that parent is able to maintain and accommodate themselves, the child and any other dependents adequately in the UK without recourse to public funds.

Adequate maintenance is where the projected weekly income ("A"), less weekly accommodation costs ("B"), would be equal to, or more than, the amount the family would be entitled to if they were in receipt of income support or equivalent ("C"). In order to calculate whether the amount held in cash savings is sufficient, the total amount must be divided by the number of weeks of limited leave that would be granted if the application was successful ("A"). The formula for calculating adequate maintenance is the same as with weekly income: $A - B \geq C$. We can assist you with the formula and advise you as to the specified financial evidence that must be submitted.

- Adequate Maintenance Requirement – Appendix FM
(<https://immigrationbarrister.co.uk/adequate-maintenance-requirement-appendix-fm/>)

Financial Requirement as a Child of a Partner

Where the parent of the child has been granted a Partner Visa, or is applying for or has applied for, a Partner Visa, the child will need to provide evidence that their parent and/or parent's partner has a gross annual income of at least £29,000.

There is no longer a separate child element to the minimum income requirement.

Different considerations will apply if the child's parent's partner is in receipt of certain state benefits or entitlements (<https://immigrationbarrister.co.uk/uk-family-visa-financial-requirement-state-benefits/>), when the financial requirement for a Child of a Partner Visa is

that the child's parent's partner can 'adequately maintain and accommodate' themselves, the child's parents, the child and any dependents adequately in the UK with/out recourse to public funds. <https://www.google.co.uk/search?q=richmond+chambers+in>

The Immigration Rules relating to the financial requirement are complex and include mandatory documentary evidence requirements. The onus is on applicants to demonstrate that the financial requirement is met. One of the most common reasons for refusal of a Child of a Partner Visa application is because mandatory financial evidence is not provided.

How to Satisfy the Child of a Partner Visa Visa Financial Requirement

The Child of a Partner Visa financial requirement can be satisfied in a variety of different ways, including by relying on:

- Income from employment or self-employment of the child's parent's partner (which, in respect of a child's parent's partner returning to the UK with the child, can include employment or self-employment overseas and in the UK);
- Income from employment or self-employment of the child's parent (if they are in the UK and working legally);
- State (UK or foreign), occupational or private pension (<https://immigrationbarrister.co.uk/how-do-i-meet-the-financial-requirement-for-a-partner-visa-if-my-sponsor-is-not-working/>) of the child's parent or the child's parent's partner;
- Non-employment income (<https://immigrationbarrister.co.uk/partner-visa-financial-requirement-non-employment-income/>) of the child's parent or the child's parent's partner for example, income from property rental or dividends from shares;
- Certain maternity allowance or bereavement benefit received by the child's parent of the child's parent's partner in the UK;
- Cash savings (<https://immigrationbarrister.co.uk/family-partner-visa-financial-requirement-cash-savings/>) of the child's parent or the child's parent's partner, above £16,000, held by them for at least 6 months and under their control.

In certain circumstances it may also be possible to rely on income or savings of a dependent child of the child's parent aged 18 or over..

In some circumstances it is possible to rely on a combination of the above sources of income (<https://immigrationbarrister.co.uk/combining-sources-of-income-to-satisfy-the-spouse-visa-financial-requirement/>) to satisfy the financial requirement.

As mentioned above, different considerations will apply if the child's parent's partner is in receipt of certain state benefits or entitlements (<https://immigrationbarrister.co.uk/uk-family-visa-financial-requirement-state-benefits/>).

In exceptional circumstances in which refusal of the application could otherwise breach ECHR Article 8, other credible and reliable sources of income, financial support or funds (<https://immigrationbarrister.co.uk/third-party-support-in-appendix-fm-applications/>)

available to the couple may be taken into account.

Our immigration barristers are experts in the Child of a Partner or Parent Visa financial requirement rules and regularly assist visa applicants to navigate the complex evidential requirements. <https://www.google.co.uk/search?q=richmond+chambers+in>

To discuss your Child of a Partner or Parent Visa application with one of our immigration barristers, contact our UK Child Visa lawyers on 0203 617 9173 or complete our enquiry form below.

Child of a Partner or Parent Visa Accommodation Requirement

Whether your child is applying as a Child of a Partner or as a Child of a Parent, they will need to provide evidence that there will be adequate accommodation available for the family, including other family members who are not included in the application but who live in the same household, without the need to rely on public funds, in accommodation which the family own or occupy exclusively.

Your child will need to provide evidence as to the basis on which the property is owned or occupied, that they are legally and exclusively entitled to occupy the property and that the property will not be overcrowded or contravene public health regulations.

Child of a Partner or Parent Visa English Language Requirement

Children applying for a Child of a Partner or Parent Visa do not need to satisfy an English language requirement.

Child of a Partner or Parent Visa Supporting Documents Checklists

The most common reason for a Child of a Partner or Parent Visa application to be refused is because the applicant fails to include sufficient documentary evidence in support of their application.

The Immigration Rules contain strict requirements in terms of the documents that must be submitted in support of a Child of a Partner or Parent Visa application. Every case is different and the required supporting documents will vary from case to case.

Applicants should be very careful when using pre-prepared document checklists for Child of a Partner or Parent Visa applications. Advice from an immigration lawyer will ensure that the documents listed are appropriate for individual circumstances.

At the same time, if a required document is not provided, is in the wrong format or does not contain all mandatory information then the application for a Child of a Partner or Parent Visa may be refused. Appeals can take many months to be determined and the outcome

may be uncertain. A fresh application will involve further cost and additional delay.

Our immigration barristers provide expert advice to Child of a Partner or Parent Visa applicants in relation to the documents required for a successful Child of a Partner or Parent Visa application and also check supporting documents for compliance with the Immigration Rules.

Child of a Partner or Parent Visa Application Fee

The Home Office application fee (<https://www.gov.uk/government/publications/visa-regulations-revised-table/home-office-immigration-and-nationality-fees-10-april-2024>) for a Child of a Partner or Parent Visa application submitted outside the UK is currently £1,846. The Home Office application fee to switch into the Child of a Partner or Parent category from within the UK or extend stay as a Child of a Partner or Parent is currently £1,048. Additional fees will apply if you use the Priority or Super Priority Service.

Child of a Partner or Parent Visa Processing & Decision Waiting Times

The current Home Office processing time for a Child of a Partner or Parent Visa application submitted outside the UK is 24 weeks. If you apply via the Priority Service then you will usually receive a decision within 30 working days. There is no Super Priority Service for out-of-country applications.

Applications to switch into or extend as a child submitted from within the UK are currently being decided by the Home Office within 8 weeks.

There is no 5 working day Priority Service for in-country child applications, but if you apply via the Super Priority Service then you should receive a decision by the end of the next working day.

Duration of a Child of a Partner or Parent Visa

If your child meets the requirements for a Child of a Partner or Parent Visa they will initially be granted a visa that will expire on the same date as the parent's visa.

Before your child's initial grant of leave expires, they will need to apply to UK Visas and Immigration to extend their stay. If their application for further leave to remain as a Child of a Partner or Parent is successful then they will be granted leave to remain, either of a duration which will expire at the same time as the leave granted to their parent(s) or 30 months, where a parent is settled but the child does not qualify for settlement.

Your child will qualify for indefinite leave to remain as a child of a person with indefinite leave to remain as a partner or parent, once they can meet the requirements of Appendix Settlement Family Life.

Switching Into the Child of a Partner or Parent Visa Route From Within the UK

(/). <https://www.google.co.uk/g=richmond+chambers+in>

It is possible for a child to apply to switch into the Child of a Partner or Parent route from inside the UK. Your child must be in the UK and under the age of 18 at the date of application.

Your child will need to satisfy the relationship requirement, financial requirement and accommodation requirement set out above.

How Our Immigration Barristers Can Help

Our immigration barristers regularly assist foreign national children to relocate to, and settle in, the UK with their parents. We have assisted scores of foreign national children to prepare and submit successful Child of a Partner or Parent Visa applications.

Whether you require expert advice on the requirements of the Immigration Rules for a Child of a Partner or Parent Visa, an independent assessment of your prospects of qualifying for a Child of a Partner or Parent Visa or professional assistance with preparing a Child of a Partner or Parent Visa application, our immigration barristers can help.

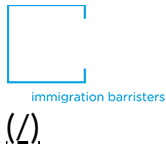
We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team of immigration barristers, dedicated to providing clear and reliable immigration advice to individuals applying for a Child of a Partner or Parent Visa as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Immigration property inspection reports for Child of Parent or Partner Visa Applications 

Applications for extension of stay as a Child of a Partner or Parent 

Fresh applications and Immigration Appeals for Children of Parents and Partners 



(<https://www.google.co.uk>
[g=richmond+chambers+in](https://www.google.co.uk/search?q=richmond+chambers+in)

WHAT CAN WE HELP YOU WITH?

To discuss a Child of a Partner or Parent Visa application with one of our immigration barristers, contact our UK Child Visa lawyers on 0203 617 9173 or complete our enquiry form below.

open

LATEST ARTICLES EXPERT COMMENT AND INSIGHT FROM OUR IMMIGRATION TEAM

Registering a Child Born in the UK as a British Citizen after 10 years

(<https://immigrationbarrister.co.uk/registering-a-child-born-in-the-uk-as-a-british-citizen-after-10-years/>)

By Alexandra Pease - Barrister Partner

08 Mar 2025

In This Article 1. Registering a Child as a British Citizen: An Overview 2. Entitlement to Register as a British Citizen 3. Meeting the Good Character Requirement for British Citizenship 4. Evidence and Documentation...

(<https://immigrationbarrister.co.uk/registering-a-child-born-in-the-uk-as-a-british-citizen-after-10-years/>)

(<https://immigrationbarrister.co.uk/registering-a-child-born-in-the-uk-as-a-british-citizen-after-10-years/>)
 (/uk-immigration-law-blog/)

Streamlined Asylum Process for Children: Eligibility & Key Updates

(<https://immigrationbarrister.co.uk/streamlined-asylum-process-for-children-eligibility-updates/>)

By Isabella Reynard - Immigration Barrister

17 Feb 2025

In This Article 1. Overview of the Streamlined Asylum Process for Children 2. Eligibility Criteria Under the Streamlined Asylum Process 3. Streamlined Asylum Process: Key Differences for High-Grant Rate Countries 4....

(<https://immigrationbarrister.co.uk/streamlined-asylum-process-for-children-eligibility-updates/>)

[\(https://immigrationbarrister.co.uk/streamlined-asylum-process-for-children-eligibility-updates/\)](https://immigrationbarrister.co.uk/streamlined-asylum-process-for-children-eligibility-updates/)
[. \(https://www.google.co.uk q=richmond+chambers+in](https://www.google.co.uk/q=richmond+chambers+in)

Child Visa Applications: How To Prove ‘Sole Responsibility’

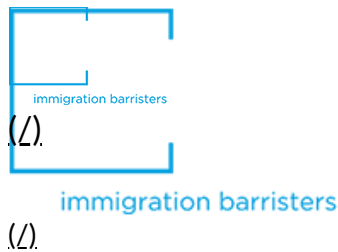
(https://immigrationbarrister.co.uk/child-visa-applications-how-to-prove-sole-responsibility/)
By Richmond Chambers -
15 Jan 2025

In This Article 1. Understanding Sole Responsibility in UK Child Visa Applications 2. Child Visa Applications Involving the ‘Sole Responsibility’ Requirement 3. Clarifying the Concept of Sole Responsibility...

(https://immigrationbarrister.co.uk/child-visa-applications-how-to-prove-sole-responsibility/)
(https://immigrationbarrister.co.uk/child-visa-applications-how-to-prove-sole-responsibility/)
(/uk-immigration-law-blog/)

More (/uk-immigration-law-blog/)

^
to top



([https://www.google.co.uk](https://www.google.co.uk/q=richmond+chambers+in)
[q=richmond+chambers+in](https://www.google.co.uk/q=richmond+chambers+in)

Richmond Chambers LLP is a limited liability partnership registered in England and Wales and authorised and regulated by the Solicitors Regulation Authority (licence number: 597974). Immigration barrister members are also regulated by the Bar Standards Board.

CONNECT WITH US

([https://www.google.co.uk](https://www.google.co.uk/q=richmond+chambers+in)
[q=richmond+chambers+in](https://www.google.co.uk/q=richmond+chambers+in))
[Chambers/411251388939163](https://www.google.co.uk/q=richmond+chambers+in)- immigration-
NAVIGATION [immigration-](https://www.google.co.uk/q=richmond+chambers+in) [law-](https://www.google.co.uk/q=richmond+chambers+in)
[barristers](https://www.google.co.uk/q=richmond+chambers+in), [blog/](https://www.google.co.uk/q=richmond+chambers+in).

Home (<https://immigrationbarrister.co.uk/>)

Personal Immigration (<https://immigrationbarrister.co.uk/personal-immigration/>)

Work & Business Immigration (<https://immigrationbarrister.co.uk/business-immigration/>)

About Us (<https://immigrationbarrister.co.uk/about-us/>)

Careers (<https://immigrationbarrister.co.uk/careers/>)

Testimonials (<https://immigrationbarrister.co.uk/testimonials/>)

Knowledge Centre (<https://immigrationbarrister.co.uk/uk-immigration-law-blog/>)

Contact (<https://immigrationbarrister.co.uk/contact/>)



RICHMOND CHAMBERS LLP

[.https://www.google.co.uk
q=richmond+chambers+in](https://www.google.co.uk/q=richmond+chambers+in)

LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

[.https://www.google.co.uk/search?
q=richmond+chambers+immigration+barristers&ie=utf-
8&oe=utf-
8&client=firefox-b-
ab&gfe rd=cr&ei=Y6DfV4KUOljS8AeOspfoDg#gfe rd=cr&lrd=0x487604b319bec605:0xe9551daf112d6ffb,1\)](https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers&ie=utf-8&oe=utf-8&client=firefox-b-ab&gfe_rd=cr&ei=Y6DfV4KUOljS8AeOspfoDg#gfe_rd=cr&lrd=0x487604b319bec605:0xe9551daf112d6ffb,1)



<https://www.google.co.uk/q=richmond+chambers+in>



© copyright - richmond chambers immigration barristers / 2025

[Legal Notices \(/legal\)](/legal) | [Privacy & Cookies \(/legal/privacy-cookies\)](/legal/privacy-cookies) | [Accessibility \(/legal/accessibility\)](/legal/accessibility) | [Sitemap \(/sitemap_index.xml\)](/sitemap_index.xml) | [Modern Slavery Statement \(/legal/modern-slavery-statement\)](/legal/modern-slavery-statement)